

Budhan Choudhry v. State of Bihar

The order of the Supreme Court arises out of an appeal from a judgment of the High Court of Patna, which raises a substantial question of law on the interpretation of the Constitution of India.

Facts & Procedural History

- The trial was conducted at Hazaribagh in the State of Bihar.
- The case was investigated by an SDM, who passed an order whereby the record was sent to the Deputy Commissioner for transferring the file to a Special Magistrate for trial.
- The Deputy Commissioner transferred the file to a magistrate exercising powers under Section 30 of the Code of Criminal Procedure (Cr.P.C.).
- Before the High Court in appeal, the appellants challenged the constitutionality of Section 30 of the Cr.P.C. The Bench took a divided view, which was subsequently placed before a third judge (the Chief Justice), who agreed that Section 30 did not violate Article 14.
- Against this order, the Supreme Court was moved in appeal.

Arguments of the Appellants

- It was contended that there had been an infraction of fundamental rights guaranteed under Article 14, since the appellant was tried by a Section 30 Magistrate and not by a Court of Session.
- The substance is that a trial before a Sessions Judge is more advantageous, since the accused gets the benefit of commitment proceedings before a magistrate and then a trial before the Sessions Judge.
- Section 30 allows the legislature to invest in the District Magistrate or any Magistrate of the First Class the power to try an offence not punishable with death. It operates as an exception to Section 28, which requires that an offence under the Indian Penal Code be tried either before the High Court, the Court of Session, or other courts specified in the schedule.
- It is submitted that Section 28 begins with the clause “*subject to the other provisions of this Code,*” and conversely, Section 30 operates “*notwithstanding anything contained in Section 28 or 29.*” In that sense, a magistrate empowered under Section 30 becomes the *de facto* tribunal competent to try all offences not punishable with death.

State’s Position & Statutory Classification

- If that were the case, then there is no discrimination, since the Section 30 Magistrate’s Court would be the only court under which all offences not punishable with death would be triable. However, this position is not canvassed by the learned Attorney General.
- The position that the State Government has taken is that the intent of Section 30 is to merely add an additional court where offences not punishable with death become triable.
- Magistrates are empowered in this regard only in certain areas which may be notified. A classification, therefore, may be based on geographical or territorial considerations.

- Therefore, in this case, the section itself does not authorize any discrimination whatsoever. If the State invests a magistrate with powers under Section 30, anybody who commits an offence not punishable with death in that area shall be tried by the magistrate under Section 30. Hence, there is no discrimination on the face of the statute.

Challenge Based on Judicial Discretion

- An alternate contention was raised that although the section is not itself discriminatory, it may lend itself to abuse through discrimination between persons accused of offences of the same kind:
 - If a case that is triable by the Court of Session is placed before a Section 30 Magistrate, Section 34 limits the power of the Section 30 Magistrate in matters of punishment.
 - Therefore, before recording or framing a charge, if the Section 30 Magistrate is satisfied that he will not be able to do justice with the maximum punishment that can be inflicted by him, he may commit the case to a Court of Session.
 - This exercise of judicial discretion has been challenged as having violated rights under Article 14.
- On this ground, it was argued that discrimination can be brought about not only by the legislature or the executive, but also by the judiciary, and therefore the inhibition of Article 14 extends to all actions of the State, irrespective of what the limb may be.

Decision of the Supreme Court

- A judicial decision must of necessity depend on the facts and circumstances of each case, and what may superficially appear as an unequal application does not necessarily amount to a denial of equal protection of the law unless there are contrary indicia.
- There is no indication that there has been any intentional or purposeful discrimination against the appellants by the SDM, the DM, or the Section 30 Magistrate who tried the accused.
- The discretion of the judicial officers in this case is not arbitrary, and the law provides for revision and appeal by superior courts. Therefore, there is hardly any ground for apprehending capricious discrimination.